



“It’s very much part of this movement to undermine democracy”: A qualitative study of European Union level opposition strategies against reproductive health and rights

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ARTICLE INFO

Handling editor: Jamie Pearce

ABSTRACT

Despite increasing contestations of agreed global commitments on sexual and reproductive health and rights (SRHR), our understanding of strategies of opposition in global health policymaking remains limited. This article explores the opposition to SRHR at the European level focusing on the decision-making institutions of the European Union (EU). The central research questions ask i) how SRHR opposition actors seek to influence EU institutions and ii) what challenges their actions pose for health policymaking at the EU level. Our empirical focus is based on the qualitative method of framework analysis, with data collected from multiple sources, including documentary data on European Parliamentary debates, Council conclusions of the European Union, reports of nongovernmental organisations, and key informant interviews. Our study is in line with observations on globally coordinated efforts to restrict access to SRH services. This is a challenge for specific forums and countries, but as well for European Union’s wider internal and external policies. We present a toolbox of strategies and actors operational at the European Union level. Our findings on opposition to SRHR indicate that it can be seen as a political tool that is part of a broader anti-democratic movement. Understanding strategies of anti-SRHR opposition is important for health policymakers as it shapes debates and the achievement of universal health coverage (UHC).

1. Introduction

Sexual and reproductive health (SRH) services are an essential part of global commitments towards Universal Health Coverage (UHC) established first in the United Nations (UN) resolution in 2012 (UHC, 2023) and reaffirmed in the 2019 UN High-Level declaration on UHC (United Nations, 2019). Universal Health Coverage was further upheld in the UN Sustainable Development Goal (SDG) 3.8. on Good Health and Well-being, and SRH is articulated in the SDG goal 5 on Gender Equality (United Nations, 2015). ‘Sexual and reproductive health and reproductive rights’ (SRHR) are considered as agreed language (i.e. agreed text) dating back to the 1994 International Conference on Population and Development (UNFPA, 1994; Gilby et al., 2021). They are considered as human rights and enshrined in international and European human rights laws, including The Convention on the Elimination of all Forms of Discrimination Against Women (CEDAW), The International Covenant on Economic, Social and Cultural Rights (CESCR), and the European Convention on Human Rights (OHCHR) (European

Parliament, 2021). However, despite these wider commitments and international agreements, SRHR remain contested, and have become increasingly challenged, undermining access to health services and the achievement of universal health coverage. These challenges not only take place at the national level, but rather, target international decision-making forums. Our study therefore adds to this field of research by providing an overview of the opposition to SRHR taking place at the level of European Union (EU) institutions, and what this means for EU decision-making on topics which impact health. Understanding better their strategies, and the resulting implications from anti-SRHR actors, is crucial for achieving universal health coverage and access to health services in practice. This also connects us to the title of the study emphasising the importance of the process of health policymaking for democratic accountability.

The EU has historically been one of the leading advocates of SRHR in international forums, yet the recognition of the right to sexual and reproductive health is not recognised across all member states (Yamin et al., 2018). This is in part due to the EU competence on SRHR in

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<https://doi.org/10.1016/j.socscimed.2024.117232>

Received 17 July 2023; Received in revised form 11 May 2024; Accepted 11 August 2024

Available online 14 August 2024

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external action, but not within the EU and Member States. Rather, Member States are expected to work together to ensure access to SRH services (European Parliament, 2021). The EU has limited legislative competence on health, but EU treaties have an important role for legitimacy for EU action (Greer and Jarman, 2021). European Court of Justice decisions on free movement of services (see: *Luisi and Carbone*, 1984; *CSPUC vs Crogan*, 1991) have laid the background for the provision of abortion services in European Union, including medical services under internal markets, and understanding abortion as a medical and economic service, contributing to the development of how health services have become considered in internal markets (Phelan, 1992; Hatzopoulos, 2002). In this light, any move on abortion services is not merely a matter of national choice, but also bears a European dimension. Global commitments with respect to sexual and reproductive health and rights, human rights, and UN commitments for UHC and SDGs are all set not only as national stances in the UN, but as part of common and co-ordinated EU stances in foreign and security policies (European Commission, 2020). Gender equality is also reflected in the EU's foreign and security policy and the EU's Action Plan on Gender Equality and Women's Empowerment in External Action for 2021–2025 (European Commission, 2020).

While many health-related questions can be answered through quantitative analysis, we need qualitative approaches to make visible and distil policy strategies. This is particularly important for research on policy processes, which may not be elaborated through quantitative analysis. For example, the role and relevance of intergovernmental organisations for policy ideas and their transference has been focus of research and is widely recognised (Keck and Sikkink, 2018). We also have literature on strategic approaches of lobbying by alcohol and tobacco industry (Smith et al., 2017; Hawkins and McCambridge, 2014). Our research thus draws both from the research and analysis of corporate lobbying strategies and understanding transnational policy influence as well as from the theoretical background and more specific work on populism, gender and sexual and reproductive rights (Kantola and Lombardo, 2020). One of the contested areas for lobbying in the EU has been abortion and SRH services. It is known that some anti-abortion groups have transnational links and are funded from outside the European Union (Velasco, 2022). On January 19, 2023, 24 Members of the European Parliament (MEPs) wrote an open letter to the President of the European Parliament calling on the President to investigate the influence of “undemocratic ideology funded by foreign actors” including “anti-abortion and anti-gender lobbyists with strong transnational links” (Rafaela, 2023).

The EU is considered a normative power when it comes to democracy and human rights (Berthet, 2022; Vida, 2022, p3; European Parliament, n.d.), with gender equality as one of the core EU values (Treaty of the European Union, 2012). However, these values have not gained equal recognition in all Member States, with democratic backsliding having taken place in Poland during the previous government, and in Hungary (Keleman, 2020) where the prior Polish government, and Hungary, came out strongly against SRHR (Vida, 2019; Gaweda, 2021). Therefore, opposition against SRHR also needs to be considered in the wider context of action against LGBTIQ + rights and abortion in relation to democratic governance (Vida, 2022, p5; Ahrens et al., 2022). Gaweda (2021) has demonstrated how governments can use opposition to gender equality to “legitimize systemic changes and democratic backsliding”. This is because gender equality and reproductive rights, including access to safe and legal abortion, promote women's and LGBTIQ + persons full and equal participation in labour markets and politics. The more extreme conservative view is often interlaced with homophobia and/or transphobia with rigidly defined gender roles for men and women (Swisspeace, 2022).

Kantola and Lombardo (2020) in their analysis of radical right parties' found opposition to gender equality as a threat to democracy itself. In October 2020, in a formal address, the Vice-President of the European Commission warned that authoritarianism is on the rise in the

EU and that “the radical right is increasing their grasp in European politics” (Borrell, 2022). Universal health coverage itself is inherently political. While democratisation promotes UHC by being accountable to their populations, authoritarian governments tend to focus health benefits to a narrower segment of the population (Greer and Méndez, 2015).

We analyse the phenomenon of SRHR opposition at the EU level using the Framework method of qualitative analysis. It provides a structured approach and can involve the analysis of a variety of material, allowing for the identification of emerging themes. (Hackett and Strickland, 2018). The theoretical underpinning of our study is based on prior analysis on opposition to gender (Kováts and Zacharenko, 2021; Krizsan and Roggeband, 2021; Kovats and Poim, 2015), SRHR (Vida, 2019; Yamin et al., 2018), and their relation to transnational conservative religious and populist movements (Kantola and Lombardo, 2020; Velasco, 2023). Where we add our contributions to the literature is by filling the gap in understanding the dynamics of opposition at the level of the EU and how it can impact EU level health policymaking. Where Kantola and Lombardo (2020) used framings to analyse discursive strategies of right-wing populists in the European Parliament, and Kováts and Zacharenko (2021) analyse EU policy documents on the meaning of ‘gender’ at the EU level, we combine an analysis of EU documents, MEP statements, reports, and key informant interviews, to provide an overview of the impacts of opposition to SRHR on the health policymaking process. And, given the links drawn from the impacts of opposition to gender equality and its role in democratic backsliding from Gaweda (2021) and Lombardo et al. (2021), and increasing illiberalism from Grzebalska and Pető (2018), we further highlight the impact this has on the democratic policymaking process in relation to health and access to health services. This is where Framework Analysis is useful, particularly using documentary materials and key informant interviews. These materials are complementary, because the documents show what has taken place, while the interviews can help explain why. This makes it especially useful for studying health policymaking through understanding how the various actors involved can shape the policymaking process, and the way in which these impacts health topics specifically, which remains understudied.

Our analysis seeks to answer to key questions: 1) how SRHR opposition actors seek to influence the EU institutions and 2) what challenges this poses for health policymaking at the EU level, especially with respect to universal coverage and access to health services.

2. Methods

2.1. Data collection

In order to gain appropriate understanding of the problem we collected data from multiple sources and perspectives. Data from EU institutions included: 1) European Parliamentary debates on the 2019, 2020, 2021, and 2022 reports and resolutions on SRHR (European Parliament, 2019a,b, European Parliament, 2020a,b, European Parliament, 2022), 2) Council of the European Union (2020) conclusions on the Gender Action Plan 2021–2025, 3) Global and regional organisation reports from 2020 to 2023, and 4) Key informant interviews. European Parliamentary debates which focussed directly on the topic of SRHR were selected first. A full text search was then applied for the words “sexual and reproductive health and rights” and “abortion”. The years included follow the European Parliamentary term which ran from 2019 to 2024. These years were selected to show the current state of opposition to SRHR at the EU level and the way abortion is discussed in the Parliament. We analysed Council conclusions during the same years and found one which specifically addressed SRHR. Table 1 lists documents used for the study. The Council documents provided a basis for mapping the position of EU member states on SRHR.

We consulted global and regional organization reports from 2020 to 2023, including from UN Women (Roggeband and Krizsan, 2020) and the European Parliamentary Forum for Sexual and Reproductive Health

Table 1
Documents examined for the study.

Year	Organisation/Institution	Title
2019	European Parliament	Experiencing backlash in women's rights and gender equality in the EU (debate)
2019	European Parliament	European Parliament resolution of February 13, 2019 on experiencing a backlash in women's rights and gender equality in the EU
2020	European Parliament	Report on the situation of sexual and reproductive health and rights in the EU, in the frame of women's health
2021	European Parliament	Sexual and reproductive health and rights in the EU, in the frame of women's health (debate)
2022	European Parliament	Sexual and reproductive health and rights in the European Union (debate)
2020	Council of the EU	Presidency conclusions on the Gender Action Plan (GAP) III 2021–2025 - An ambitious agenda for gender equality and women's empowerment in EU external action
2021	European Parliamentary Forum for Sexual and Reproductive Health and Rights	Tip of the Iceberg: Religious extremism - Funders against Human Rights for Sexuality & Reproductive Health in Europe
2020	Heidi Hautala, MEP and Vice President of the European Parliament, The Greens/EFA Group	Anti-gender mobilisations in Europe. Study for policy makers on opposition to sexual and reproductive health and rights in European Institutions
2020	UN Women	Democratic Backsliding and the backlash against women's rights: Understanding the current challenges for feminist politics
2022	Association for Women's Rights in Development	Rights at Risk – Time for Action: Observatory on the Universality of Rights Trends Report (2021)
2021	Centre for Feminist Foreign Policy	Funding (in)equality? A comparative look at the funding landscape for pro-and anti-gender initiatives and campaigns in the European Union
2022	Centre for Feminist Foreign Policy	Disrupting the multilateral order? The impact of anti-gender actors on multilateral structures in Europe

and Rights (Datta, 2021). Online reports were also included from global advocacy organisations: The Association for Women's Rights in Development (Shameem et al., 2021) and The Centre for Feminist Foreign Policy (Denkovski and Kreitlow, 2021; Denkovski, 2022). Lastly, a specific commissioned report from Heidi Hautala, MEP of the European Parliament Greens party was analysed (Zacharenko, 2020). These reports were selected as they provided detailed information on the anti-gender mobilisation.

We used key informant interviews to support the findings in the documentary analysis as well as to provide additional insights. It is important to note that interviews were not used to represent facts, but insights and observations of processes important for strategic oversight. Key informants included government officials and civil society representatives working in the EU. The interviews were semi-structured to allow for flexibility during the interview (Kallio et al., 2016). Interviews were centred around three questions: 1) what tactics are being used to oppose SRHR in EU institutions, 2) what framings are being used in opposition, and 3) how external actors engage with opposition.

Given the sensitivity of discussions and the positions of the participants, strict anonymity was adhered to, including the country and organisation they represent. The participants were given codes for the study. I2 included an interview with 2 participants. Informed consent

was obtained from all participants. The total number of interviews conducted was 8. Interviews were recorded via voice recorder and later transcribed. The interviews lasted between 30 and 60 min and took place either in person or via zoom between May–September 2022.

2.2. Data analysis

We applied the Framework Approach using the five stages outlined by Hackett and Strickland (2018), to the interview transcripts and documentary data. Stage one involves familiarisation of the data, including reading and re-reading of the transcripts in order to move on to stage two, the identification of themes, in this case, the strategies in opposition. This involved the reading and re-reading of transcripts to uncover key themes. Because the Framework method is versatile, we drew our wider analytical framing and examination of stances used by opposition leaders from the framework used by Kantola and Lombardo (2020) which focused on gender opposition in European Parliament (EP). Debates in the EP were chosen as these offered a platform for MEPs to construct an argument, and the identification of frames enabled a look at how human rights norms are manipulated for the purpose to show that SRHR are against human rights. This led to the third stage of indexing and sorting to develop thematic charts. These were then charted in stage four, in order to summarise the findings in a way which can be interpreted, stage five.

We complemented documentary material with key informant interviews both to ensure that our focus covered relevant areas as well as to gain more detailed insight. Table 2 lists the key informant interviews. The documentary material and interviews were used to form a conceptual framework and mapping of actors, arguments, and allegiances of opposition to SRHR and how these were reflected in European Union policy decisions and debates.

2.3. Ethical approval

This research proposal has passed the ethical review process by the Ethics Committee of the Tampere Region (REF: 64/2021). The review committee does not give a formal approval, but it grants positive statement/pass for research which meets the set ethical criteria.

3. Results

The clearest, direct impact on EU decision-making was seen in resolutions, debates and decisions concerning SRHR. The 2019 European Parliament resolution on sexual and reproductive health and rights reflects an explicit concern over the influence of anti-gender campaigners and organisations. The resolution states that “anti-human rights campaigners and organisations aim through their strategies to overturn existing laws on basic human rights related to: sexuality and reproduction, including the right to access modern forms of contraception, assisted reproduction technologies or safe abortion”.

The analysis of the documentary material and interviews both brought up key insights into the strategies used in opposition at the EU level. The main results are presented in Fig. 1: Toolbox of opposition strategies, and below in detail under each identified strategic thematic emphasis in anti-gender activity.

Table 2
Key informant interviews.

Interviewee code	Profession	Interview mode
I1	National NGO	In person
I2	International Organisation	Zoom – 2 persons
I3	Government Official	In person
I4	Government Official	In person
I5	International NGO	Zoom
I6	International NGO	Zoom
I7	International NGO	Zoom

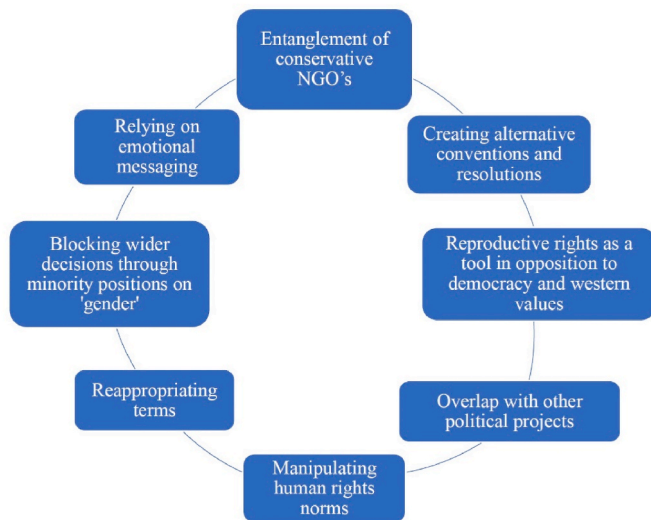


Fig. 1. Toolbox of opposition strategies.

3.1. Entanglement of conservative member states and NGO and CSO's

One of the strategies for opposition is to gain presence through civil society organisation's (CSO) own representatives, or by working with Member State representatives (Datta, 2021). This enables them direct access to influence EU level language on SRHR. One example highlighted by interview 2 discussed their experience of this phenomenon in relation to The Economic and Social Council (ECOSOC). The UN Economic Commission for Europe is one of 5 regional commissions within the purview of ECOSOC. Its responsibility is, among others, to identify solutions to social and health problems and encourage universal respect for human rights and fundamental freedoms. (ECOSOC, 2005).

"We can see it happening via Hungary and Poland where their anti-gender organisations manage to get very high-level positions like ECOSOC at the Commission or they try to make an outreach to the Court of Justice, various institutions where they can block the language and influence the language, which is produced at the EU. The same happens with all the missions and representations, where the national government has a chance to send representatives." 12

United States (US) Christian Right anti-gender organisations are the most prominent civil society organisations working in the field in Europe (Datta, 2021). In particular, the Alliance Defending Freedom International (ADF International), is the second largest US Christian Right spender in Europe (Datta, 2021). Multiple reports (Datta, 2021; Denkovski and Kreitlow, 2021; Zacharenko, 2020; Roggeband and Krizsan, 2020) have outlined how CSO's and NGO's, operating under external financing from the US and Russia, systematically target European institutions. At the level of the EU, conservative CSO's have been shown to have successfully applied for EU funds by becoming established in member states and aligning with national organisations (Ruzza, 2021). Having established relationships with MEPs with shared views, this then enables them to express their views at the European Parliament (EP). The possibility of voicing the views in EP policy discussions is important because anti-SRHR debates at the EP shape the discourse around abortion rights in the EU (Berthet, 2022).

Financial support from the US comes from US Christian Right organisations, as well as from US-based libertarian and conservative think tanks, such as the Cato Institute and The Heritage Foundation. (Datta, 2021). The move of libertarian think tanks closer to the so called alt-right agenda has become evident in recent years and is evident, for example, in the Heritage Foundation creation of Project 2025 (The Mandate for Leadership, 2024) and the global implications for gender and SRHR outlined within. This is important as libertarian actors and

think tanks are well resourced and able to provide networks and funding internationally (Datta, 2021; Denkovski and Kreitlow, 2021; Zacharenko, 2020; Roggeband and Krizsan, 2020). This enables US-based conservative organisations and actors to influence SRHR policy in Europe, which was taken up also in our interviews:

"Most of the anti-gender initiatives that we see appearing in Europe or indeed around the world they were first tested out in the United States. I mean the US Christian right has had 30 years' time on everybody else, they have 50 states to experiment in." 12

Reports from Datta (2021), Denkovski (2022), and Zacharenko (2020), show the influence of US-backed and financed CSO's and think tanks demonstrating that health-related decisions in the EU are subject to lobbying from interest groups from foreign countries with their own agendas. Interviewees also emphasized the ability of US domestic politics on abortion to impact discussions on abortion at the European level:

"Right after Roe v Wade was overturned, there was an event organized at the European Parliament against abortion by [EP party] ECR. The new bill in Hungary on 'foetal heartbeat' is a clear impact of the Roe v Wade decision in the US." 17

An open letter by European Parliament MEPs in January 2023, sought to withdraw accreditation of anti-abortion lobbyists with transnational links. They listed the ADF, Ordo Iuris, the European Centre for Law and Justice (ECLJ), Foundation Jerome Lejune, and World Youth Alliance Europe, citing the potential for "foreign interference in European Policymaking". These organisations were also mentioned by interviewees, specifically ADF and Ordo Iuris. The ADF and ECLJ are legal advocacy firms but receive their funding from the American Center for Law and Justice. These organisations have set up offices in proximity to European courts to participate in anti-SRHR and anti-gender legal cases (Datta, 2021). Funding from these organisations has also gone towards anti-abortion and anti-CSE (comprehensive sexuality education) legislation, both at the EU level, as well as the member state level (Datta, 2021; Denkovski and Kreitlow, 2021). Fig. 2 shows examples of key SRHR opposition actors at the EU level.

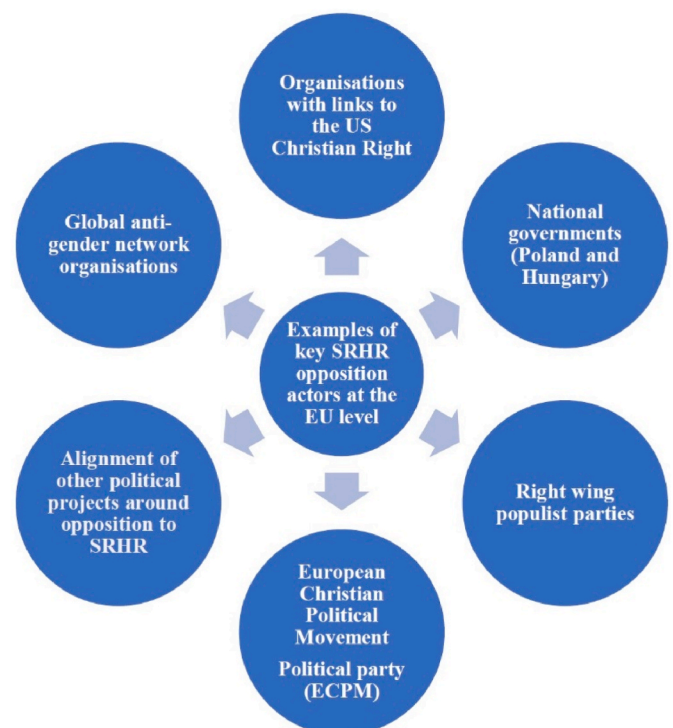


Fig. 2. Examples of key SRHR opposition actors at the EU level.

3.1.1. Use of public and EU funds

While the European Parliament (EP) is considered as the most democratic of the EU institutions, there is an increasing number of representatives from right-wing populist parties (Kantola and Lombardo, 2021). The 2020 report commissioned by Vice President of the EP, Heidi Hautala, identified that during the 9th term of the EP from 2019 to 2024, over 210, or 30%, of MEPs in the EP oppose SRHR and gender equality (Zacharenko, 2020). Table 3 lists the political parties of the EP. The report by The European Parliamentary Forum for SRHR highlighted how the European Christian Political Movement (ECPM), funded by the EP, received USD8.2 million between 2010 and 2018. They were found to have used this funding to host international events against abortion, as well as to provide a pathway for anti-gender actors to enter EU policymaking and republish anti-SRHR texts. (Datta, 2021). According to Zacharenko (2020), the Hungarian government also used funds, which originated from the European Commission’s Employment and Social Solidarity Fund, Progress, for an anti-abortion campaign.

The ECPM had 4 representative MEPs in the Parliament during the 9th term, in the European Conservatives and Reformists Group, and the European People’s Party. They sponsor an annual political training of future lobbyists on topics of “freedom, family and life”, held by the European Advocacy Academy and organised by European Dignity Watch (ECPM, 2017, n.d.). Furthermore, global opposition platforms, such as CitizenGo, have been able to directly fund opposition parties that have representation in the EP. This was brought up also in key informant interviews:

“It was Open Democracy in 2019 that showed that funding to CitizenGo was a way of legally bypassing election campaigning financing laws in many countries so that by funding some of these anti-gender organisations they will then get involved and indirectly support a political party that shared their views. And the funding doesn’t have to be declared as going to Vox or Fidesz or something else.” I2

3.2. Creating alternative conventions and resolutions

The creation of alternative resolutions and conventions enable anti-SRHR actors to delay negotiations by submitting different texts for debate and discussion. Polish prior governing Law and Justice Party presented the ‘Convention on the Rights of the Family’ in 2018 together with the conservative non-governmental organization Ordo Iuris (Ordo Iuris, 2018). The draft of this convention, according to the European Christian Political Movement’s website:

“seeks to codify the basic principles pertaining to the institution of the family that do not all enjoy the protection of international law and national constitutions. These principles include treating the family as the basic foundation of society, protecting human life from conception to natural death, supporting families, recognizing the family as the best development environment for the child and protecting the identity of marriage as a union between one man and one woman.” (ECPM, 2018).

Interview 2 suggested that this convention was used to try and draw signatories away from the Istanbul Convention on combatting violence against women:

Table 3
European Parliament political parties.

European Parliament political groups
European People’s Party (EPP)
Progressive Alliance of Socialists and Democrats (S&D)
Renew Europe
Identity and Democracy (ID)
Greens/European Free Alliance (Greens/EFA)
European Conservatives and Reformists (ECR)
Left group (GUE/NGL)

“Poland tried to invite other Eastern European countries to jointly leave the Istanbul Convention and then to consider joining this fake convention written by the Polish organization Ordo Iuris on the Convention on the Rights of the Family.” I2

The tactic of presenting alternative resolutions echoes the practice seen at global level in the creation of the ‘Geneva Consensus Declaration’ (Institute for Women’s Health, 2021), spearheaded by the Trump Administration in 2020, in an attempt to expand the anti-SRHR, pro-traditional family coalition at the UN level. This Declaration would also be reenacted under Project 2025 (The Mandate for Leadership, 2024).

The presentation of alternative resolutions drafted and originated by conservative NGO’s, demonstrates how anti-SRHR organisations influence the debates in the EP, and attempt to insert text into policy documents. This is an increasing tactic being used at the EP and was noted also in the interviews in relation to the 2020 ‘Report on the situation of sexual and reproductive health and rights in the EU’ by Fred Matic (European Parliament, 2020a,b).

“A lot of alternative texts submitted for the Matic report came from opposition movements and conservative NGO’s and mainly towards the parliament. This is something they are using, trying to push their language. A second thing they have been using a lot is to try and scare MEPs into the fact that they will not be re-elected because their voters were against SRHR if they support the Matic report. So, what they did was to set up a lot of petitions within countries, such as Croatia, trying to have a lot of signatures against this SRHR report, to try and pressure the MEP’s into voting the report down because it would be against the wishes of their voters.” I7

Following the 2020 Matic report, the 2021 EP debate saw two further alternative texts submitted by conservative MEP’s (European Parliament, 2021), causing alarm by MEP’s who support SRHR (see: Box.1).

3.3. Reproductive rights as a tool in opposition to democracy and “western values”

While opposition to SRHR varies along national contexts, interview participants stated that it was their view that opposition to SRHR was also used as a tool in opposition to democracy and western values.

“For some actors, it is a way to position themselves in opposition to Brussels and to what is perceived as western liberal values and to create an alternative set of values and model that they can promote.” I2

They further highlighted how these attitudes were not only seen from right-wing populists in the EP, but also from member states.

“In the case of Poland and Hungary it’s a resistance towards Western hegemony as in Western Europe [...] in combination with building their own nation, how do you build a nation from the ground, you need strong men, and women at home taking care of the children” I5

These insights from Interview 2 and 5 support the findings in the literature from Grzebalska and Pető (2018), where illiberal Parties reject liberal democracy and the influence and values of institutions including the EU. Multiple interviewees also suggested that the opposition to SRHR and gender equality more broadly is used to frame it as imposing the will of other countries:

“It really comes within this broader opposition to what the opposition would call EU values and democracy and rule of law so it’s not only gender equality it’s really seeing the EU as imposing western values quote unquote as that’s the way in which some opposing countries would frame it.” I7

As seen in Box 2., arguments against SRHR in the EP include that matters of sexual and reproductive health and sex education are for individual member states. Multiple statements have been given during debates at the EP stating that it is not the forum to discuss abortion

Box 1

Maria Soraya Rodriguez Ramos, MEP Renew

“it is difficult to understand where the European People’s Party is going with this last-minute alternative resolution. That place they are going to is already occupied by the extreme right. It is a place where women are not allowed to decide, a place where decisions are imposed on them. It is a place where the rights of women are restricted, ending, finally, restricting the rights of all.”

access and that it is up to individual states to decide. This was also brought up by interviewees:

“it’s really not even about women’s rights or or sexual reproductive health and rights in general like essentially but it’s a very good tool to turn against and the whole human rights sort of rhetoric and sort of turn it around to say that it kind of threatens, all you know, sovereignty.” I3.

Prior research from [Gilby et al. \(2021\)](#) and [Ahrens et al. \(2022\)](#) has also shown that arguments in other fora, such as the UN, have long before framed SRHR as going against national sovereignty. Our interviews, as well as MEP statements in [Box 2](#), seem to suggest that this is still the case.

3.4. Overlap with other political projects

The anti-gender agenda gets caught up in other political projects, including such as climate change denial, libertarianism, ultra-nationalism, and anti-vaccination. As outlined in the report by [Zacharenko \(2020\)](#), by adopting a discourse, which is in opposition to ‘gender’, this enables the alignment of actors who otherwise do not have as much in common, including centrists, the far-right, libertarians, and various religious groups. This was further supported by the observations of the participants in interview 2:

“There are a series of overlapping circles, it looks like a complicated Venn diagram, with different political projects there and they are able to find each other on certain things. They found friends in other sectors who may have different uses for anti-gender thinking, so that one of the other sectors is more than nationalist or ultra nationalist agenda, so for them gender issues is more of a constituent part of their nationalist agenda, so for example “we Hungarians have always been a proud people, men are courageous and strong, women know their place and bear many children”. Then you have more of the hyper libertarian ones, which their approach would be more of favouring a weak state, so that any amount of state intervention is infringement on personal freedoms and specifically you know the freedom to pollute you know that the freedom to come to exploit these types of things and so human rights protections therefore becomes an infringement upon personal freedoms”. I2

This insight from Interview 2 brings up a potential new area of study in analysing the overlapping political projects, and in particular, their

impacts on health. Existing research has already shown that some of the same people who said that vaccines infringe on bodily autonomy, also support abortion restrictions ([Rulli and Campbell, 2022](#)). This sentiment is demonstrated in a statement by MEP Miroslav Radačovský (NI), seen in [Table 4](#). A 2019 study in the United States by [Nelson \(2020\)](#) also found that “white, politically conservative males” who did not believe in climate change, also espoused behaviours, which were misogynistic and sexist. In this case, gender, and action on climate change, were seen as “threats to white male privilege and power”. On topics which impact health, such as climate change and public health mandates, it appears there is a cross over between actors who oppose these as well as gender equality and SRHR.

3.5. Manipulating human rights norms

As SRHR have been promoted under rights-based language, this has become part of articulation of opposition through changing emphasis and context. This has been reflected in the co-optation of human rights language in an attempt to give legitimacy to arguments against SRHR. Where policymakers are not well versed in the nuances of language and tactics, these arguments may sound legitimate.

“I mean the opposition agenda they would always code it in sort of very genuine and good discussions on rights, I mean the rights of persons with disabilities for example is one of their favourites, like coding it in that and

Table 4
Opposition statements by MEP’s.

MEP and party	Statement
Michaela Šojdrová (PPE)	“Please respect the subsidiarity of member states’ decisions and the right of women to have children.”
Margarita de la Pisa Carrión and Jadwiga Wiśniewska (ECR)	“It undermines the freedom, equality and dignity of women, going against their nature by separating their identity from their biological sex.”
Miroslav Radačovský (NI)	“I respect the rights of the child, the right to his life, the right to his natural father and mother. Parents’ rights to raise children are irreplaceable. Brussels cannot decide on their health, they have to decide for themselves whether they will be vaccinated or not”.

Box 2

Andrea Caroppo, MEP PPE (2021)

“I express my profound disagreement with the report on Sexual and reproductive health and related rights in the EU in the context of women’s health which frontally violates the principle of subsidiarity, attacks the sovereignty of member states”

saying that this is for the best for persons with disabilities if they have a family life and a family that protects them [...] and turn it into how can we turn this into a pro-life, pro-family life, anti-SRHR language.” 16

Interview 6 demonstrates how, through re-framing strategies, anti-SRHR language can be “spun” to come out sounding reasonable to diplomats and representatives, who may not be aware of their tactics and language. Focusing on language is important in order to look at strategies to undermine, or weaken, agreed language. Alternative texts to SRHR use framing which talks about the rights of the family and women’s rights, but upon closer look, talks about rights only for families where you have a man and woman as parents, and the rights of women to be mothers.

“One thing that we see is overall language so ideas that were rooted in religion and religious thinking go through a process where they come out and they sound like human rights language another one is coopting language of the progressive actress talking about choice” 12

This observation from Interview 2 supports the examples, which are shown in Table 4. These arguments by MEPs opposed to SRHR focused on “the natural order” of biological sex. Such language referenced specifically the “natural father and mother”, and framed SRHR as against the nature of women. In the statement by MEP Miroslav Radačovský, we also start to see links between opposition to SRHR and anti-vaccination sentiment.

Focusing on two genders in practice eliminates access to health and specific needs of LGBTQI + communities. This was explicit also in the 2019 EP report, which found that there are member states, which have refocused their gender equality policy to motherhood policy.

3.6. Reappropriating terms

One strategic tool is to reappropriate already used terms and agendas for a new purpose. Examples of such actions can be shown especially in creating opposition for EU external policies. For example, terms such as ‘decolonisation in health’ have been reappropriated by the opposition as against SRHR. As result of the inclusion of non-trade and wider commitments on human rights and/or SRHR to trade agreements, these have become a point for action. For example, the updating of the [Partnership Agreement \(2021\)](#) between the EU and the now international organization the Organisation of African, Caribbean and Pacific States (OACPS), included cross-cutting themes, such as human rights, democracy, and gender equality ([European Commission, n.d.](#)). One civil society representative explained how the decolonisation frame in this context has been used to legitimize opposition to SRHR:

“The frame that is important to look at within EU external policies is using the decolonisation frame to their advantage. During an opposition webinar on the ACP-EU they were using this whole idea of having the EU imposing values on Africa trying to sexualize African children and these kind of talks which is something that is new as a frame but is coming more and more.” 17

This observation articulates how those opposed to SRHR could also co-opt progressive agendas as another tactic to oppose SRHR. Quite paradoxically many of such stances relate to wider strategies originating from international organisations. For example, in relation to the updating of the EU-OACPS agreement, Family Watch International published a brief in 2023 issuing a call to action to “protect your nation’s children, parental rights, family and cultural values, and especially national sovereignty!” ([Family Watch International, 2023](#)). This is one example of how an anti-gender organisation, such as Family Watch International, has criticised the inclusion of references to ‘human rights’ and ‘gender’ as being against cultural and family values, thus changing their focus and use in this context. Family Watch International was founded in the US and has consultative status at ECOSOC, and on their website states they are a “worldwide leader in the pro-family

movement.” ([Family Watch International, n.d.](#)). The organisation is embedded within the anti-gender network in Europe, having financed a transatlantic summit in Brussels in coordination with CitizenGo and Alliance Defending Freedom ([Datta, 2021](#)).

“Other member states where they want to be pro-SRHR, but they’re not maybe fully versed in these sorts of small nuances we are seeing them being easily co-opted by the opposition” 16

This highlights the need of diplomats and policymakers to have a more in-depth understanding of opposition tactics and strategies.

The opposition to the word ‘gender’ has become expanded to any document where it is mentioned. As part of these tactics, efforts have been made to change ‘gender equality’ to being ‘equality between men and women’. This was explained by a senior government official:

“it’s very much this is the traditional view [...] which is like only two genders, women and men, and very much how they see the role of women in the society and if we look at the border picture or context, I think that all these anti-gender movements and opposing the rights [...] it’s very much part of this movement to undermine democracy. [...] in this traditional view they only see women as something that is a mother basically and staying at home so it’s also limiting their participation of course that’s like then, who has the voice in society, so basically how they see it well I think it’s that it’s a man” 14.

3.7. Blocking wider decisions through minority positions on ‘gender’

Opposition to SRHR, and even the word ‘gender’ has had significant repercussions. During discussions for the 2020 Gender Action Plan III, consensus was not achieved, so council conclusions had to be accepted as non-binding Presidency Conclusions ([Council of the European Union, 2020](#)). This was further expanded on by a civil society representative with working knowledge of the negotiation:

“It’s easier to get reports through in the parliament than in the council and the member states negotiations” “For example, they blocked the council conclusions last summer that ended up being presidential conclusions. There were conclusions where these arguments were about the natural order, men and women, family values, the way nature works, and ‘we don’t believe in this word gender equality’” “It’s very clear that, you know, countries, most of the countries, are very much pro-SRHR and gender equality and all that but with these two, and sometimes one or two more, but in the in the core of it you know they can still block the whole thing. It’s terrible for the UN when the EU is supposed to speak with a unified voice”. “If it wasn’t for Poland and Hungary, the EU would be much, much, stronger without Poland and Hungary when they negotiate in the UN” 15

It should be noted that this interview was conducted during the previous Polish government under the Law and Justice Party. Despite an overwhelming 24 out of 27 member states supporting the text, 3 opposing member states were still able to block conclusions. Where consensus is required, opposition actors can use their influence in decision making within institutions. This strategy works both through the power of blocking, but also through making the inclusion of gender a more burdensome process.

“In the council, we have seen a lot of opposition that was not there before with the capacity to block things. There is a divide in the council, with Poland and Hungary on one side and other member states on the other, and then a few who could be convinced one way or the other depending on the issue. Bulgaria sided with Poland and Hungary on the Gender Action Plan, which came from a national debate on the Istanbul Convention” 17

Legal disputes over competency can also hold up negotiations over EU internal policies. This is supported by the greater Member State competence on health services. One civil society representative explained the difference in working on EU external and internal policies

from their perspective, suggesting that there are differing challenging in advancing SRHR in EU external and internal policies:

“It’s much easier to work on SRHR within EU’s external policies because it’s not targeting the white European family basically, that’s a reason why for Hungary they are focusing less on external policies so it’s much easier to include SRHR in development policies or development funding, also because the European Commission also doesn’t have the same competencies for external and internal policies. It’s much more difficult for the commission or for allied member states to push for European health policies so the opposition is much stronger on internal policies. It’s really a fight to have language on SRHR in internal policies.” 17

3.8. Relying on emotional messaging

Plenary sessions at the EP provide a platform for the opposition to put populist politics on display, revealing tactics of self-victimisation’ (Berthet, 2022), where those in opposition paint themselves as a dwindling minority being taken over by a feminist and LGBTQI agenda. Using emotional messaging, SRHR are framed as harming women, as seen in Box 3. This is also demonstrated in Table 4, showing the response of MEPs opposed to SRHR to the 2021 EP debate. Here, SRHR is framed as removing the rights from women to have children, rather than SRHR meaning that people can make their own decisions over whether or not they want to have children.

“They don’t actually hate LGBTQI people and think they should go to hell, but because they gain votes” “People need more simple, more emotional messages, and so from a populist perspective this is an area that touches many people that is easy to mobilize around and it’s easy to get the votes from the religious right” 15

Much of policymaking relies on who can tell the best story (Davidson, 2017). This is reflected also in the opposition strategies and choice of words used.

“With this you can use the word murder for example. So, who cares about, you know, if you can use the word ‘Murder’ to communicate something, ‘kill a child’, ‘murder a child’, who cares about these complicated health complications in relation to it so if you create so, so, simple and emotional messages that you have to compete with your research and your rights-based approach, it’s hard” “We have to become better at simplifying our messages and not to the governments, not to each other, but the people who vote for Trump.” 15.

These insights from interview 5 suggest the challenges in successfully using evidence-based messaging on topics which can be emotive, and which have been politicised to such an extent. This adds insight into how the use of emotional messaging could influence health policymaking.

4. Discussion

Our findings resonate with several other studies in the field, and our analysis supports concerns by MEPs that there is a transnational element in efforts to influence EU policymaking. This was further supported by key informant interviews, which highlighted that anti-gender actors are

firmly embedded within EU institutions and actively try to impact discussions on SRHR. While legal and policy documents represent official data on changes and claims, the interviews gave us more insight and reflection on these processes and set the changes in a policy context. Thus, while interviews should not be seen as factual, they provide insight on context and were used to confirm or challenge observations on the ground of materials. Velasco (2023) has highlighted the issue of foreign interference, stating that “in an era of rising populism and nationalism, intertwining LGBT + rights with foreign interference becomes easier and puts anti-LGBT + forces on the side of populist energy”. On the ground of our findings, it can be claimed that opposition actors are specifically targeting democratic institutions in order to advance anti-democratic goals, adding further support to literature by Krizsán and Roggeband, 2021, Berthet (2022), Gaweda (2021), and reports by Datta (2021) and Denkovski (2022) on the manipulation of democratic processes by anti-rights actors leading to policy backsliding. Several scholars (Kantola and Lombardo, 2021; Vida, 2022; Gaweda, 2021) as well as the report by Roggeband and Krizsan (2020) describe the opposition to gender-equality and reproductive rights as a tool in de-democratisation. While de-democratisation reveals the fragility of democratic institutions (Lombardo et al., 2021; Roggeband and Krizsan, 2020) it also poses challenges to health policymaking. The presence of anti-gender actors within EU institutions, in particular their targeting of SRHR and SRH services, demonstrates that anti-gender activities also affect access to health services and achievement of universal health coverage in the EU. Our interviews also indicated overlap of different political projects in opposition to SRHR, including opposition to vaccination mandates. This adds support to the literature, which shows that opposition to SRHR becomes a common ground, whether it’s in support of a right-wing populist (Kantola and Lombardo, 2021), nationalist (Velasco, 2022), or religious agenda (Yamin et al., 2018). Some of the same people who said that vaccines infringe on bodily autonomy, also support abortion restrictions (Rulli and Campbell, 2022). On topics which impact health, such as climate change and public health mandates, there is a cross over between actors who oppose these as well as gender equality and SRHR. It is clear that further research is needed on how these wider political projects intersect with efforts to ensure access to SRH and ensuring universal health coverage.

Through the actions on Council conclusions, confirmed by interviewees, we have shown that a small minority of member states have the ability to block council conclusions. In Europe, this has so far related particularly to Hungary and Poland under the prior government, of which Velasco (2022) has used the concept the “illiberal state” (Velasco, 2022). Previous research (Gilby et al., 2021; Zacharenko, 2020) has showed that in the UN negotiations references to “sexual and reproductive health services” and “sexual and reproductive health” were objected to by the former US Trump Republican Administration and were joined by other opposing members in joint statements submitted at the UN, including by Poland and Hungary. This is where we see that the opposition to SRHR becomes more than opposition to gender equality and established human rights and extends to access to health services undermining the achievement of universal health coverage.

Box 3

abortion “undermines the freedom, equality and dignity of women, going against their nature by separating their identity from their biological sex.” Margarita de la Pisa Carrión and Jadwiga Wiśniewska, ECR

“Ladies, let’s be proud that women can be mothers, it’s a gift, it’s a right. Abortion is not a human right. It is a right to be born. But I will always fight for the rights of mothers and children to be born. Please respect the subsidiarity of member states’ decisions and the right of women to have children.” Michaela Sojdrová, MEP EPP

Our findings are in line with wider studies on anti-SRHR actors' reliance on emotional messaging (Berthet, 2022; Kantola and Lombardo, 2021), rather than evidence-based facts grounded in health and the right to health (Rulli and Campbell, 2022). This was seen explicitly in the analysis of statements by opposition MEP's during EP debates, where abortion was framed as "against the rights and nature of women". However, it is widely known that when restrictions are placed on abortion and other SRH services, rates of maternal mortality and morbidity increase (Grossman et al.; World Health Organisation, 2022).

While research by Krizsán and Roggeband, 2021 demonstrated how illiberal actors appropriate rights language within member states, we show that the manipulation of rights language in relation to SRHR takes place also at the EU level. Grzebalska and Petó (2018) have emphasized the appropriation of key concepts and tools by illiberal actors and the redefining of human rights and equality. This was also brought up by one of the interviewees in relation to discussions on disability rights. This, and how opposition to SRHR relates to wider EU external policies, would be important areas for further study. Our analysis is not an exhaustive study on tactics used, and prior studies by Denkovski (2022) and Datta (2021) show there are multiple entry points for anti-gender actors at the EU level. It is likely that tactics used may change as they are recognised more and/or wider political context changes.

Finally, the validity of our research is subject to limitations. It lacks internal insights on institutional dynamics or interviews of those opposing SRHR. Ideally, we could have studied internal documents, and conducted interviews, amongst those opposing SRHR. Yet, we felt this was beyond the scope of this study, and worthy of its own separate analysis. The documentary analysis also covered only one term of the European Parliament. Other methods could have also been used, such as an ethnographic study, which could have provided richer insights. Considering the aims of the study, we do think that our toolbox of strategies casts an initial light on the European policy context as well as potential insights on wider transnational influences for future research. While many individual strategies are not new, we provide a view of how a number of these are already applied at the European level on health policymaking.

5. Conclusion

We cannot forget that access to SRH services, including safe and legal abortion, is an essential part of health services and universal health coverage. The opposition strategies to SRHR are not only articulated in the context of health policy priorities, but as well embedded in the wider tactics and strategies on gender and populist policies, and broader anti-democratic movements. Like the COVID-19 pandemic, opposition to SRHR, LGBTQI + rights, and gender equality, does not adhere to international borders. Health scholars, advocates and policymakers working on health need to recognise global opposition to gender equality and SRHR as a serious threat to health and universal access to health care, including in the European Union.

Ethics committee of the tampere region

Statement 64/2021 provided by the Ethics Committee in response to the request for statement 39/2021:

Request for statement 39/2021: "Reproductive politics and universal health coverage –

Deconstructing US and EU networks on sexual and reproductive health and rights" (Faculty of Social Sciences, Politics Unit)

Statement by the Ethics Committee:

The Ethics Committee has got the clarifications. The committee gives a positive statement. The research does not entail ethical issues.

CRedit authorship contribution statement

Lynda Gilby: Conceptualization, Data curation, Formal analysis,

Funding acquisition, Investigation, Methodology, Project administration, Visualization, Writing – original draft, Writing – review & editing. Meri Koivusalo: Conceptualization, Supervision, Validation, Writing – original draft, Writing – review & editing.

Data availability

No data was used for the research described in the article.

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